



MEMORANDUM OF AGREEMENT

This Memorandum of Agreement ("Agreement") is entered into as of the date of signature between:

Mutant Media FZC ("Agency"), with offices in Dubai, UAE, and
Mamalu Kitchen ("Client")

1. SCOPE OF WORK

The Agency agrees to provide the following services for Mamalu Kitchen:

Primary Services

- **Website Design & Development** (Framework and specifics to be detailed in the SOW)
- **Annual Hosting Services** (server, security, uptime monitoring & support)
- **WhatsApp AI Setup & Integration** (automation, onboarding flows, lead capture, basic conversation workflows)

The detailed deliverables, platforms, features, technical requirements, and performance metrics will be defined in a separate **Scope of Work (SOW)** attached to this Agreement. Multiple SOWs may be created depending on the Client's needs, future enhancements, and additional feature requests.

Beyond the defined Scope of Work, a checklist of KPIs and deliverables will be created during the strategy and proposal phase as part of the onboarding workflow. These will be finalized during the kick-off meeting and will require mutual sign-off before execution. Any changes, additions, or removals in Scope of Work after project commencement must be mutually agreed upon in writing. Changes may result in additional fees, revised timelines, or updated SOW documentation.

2. TERM & TERMINATION

- This Agreement shall commence **upon receipt of the Client's first payment** and will automatically renew on a monthly basis for retainer services, unless terminated by either party with a **30-day written notice**.
- This Agreement remains in effect until project completion, unless terminated by either party with a **30-day written notice**.
- Either party may terminate this Agreement due to a breach of contract, provided the breaching party is given 10 days to remedy the breach before termination.
- In the event of non-payment beyond the due date, all work shall be suspended immediately until outstanding amounts are fully settled.
- The cancellation of monthly retainers for social media or any other marketing-related services shall not affect the agreed-upon website scopes and deliverables, and payments will be consolidated accordingly. Likewise, the termination of website-related services shall not impact the continuation of any marketing retainers unless explicitly agreed upon in writing by both parties.

3. PAYMENT TERMS & CONDITIONS

1. Retainer Services

- Monthly payments for retainer services, including but not limited to social media management, digital marketing, SEO, and website maintenance, are due on the 1st of every month as per the agreement and tax invoice.

2. One-Time Projects

- Payments for one-time projects, including but not limited to website development, application development, branding, and design, shall be made either as a one-time payment or in phased installments, as outlined in the agreement and **tax invoice**.

3. Payment Method

- All payments must be made via Bank Transfer to the Agency's designated bank account. Alternative payment methods require written agreement.

4. Late Payments & Service Suspension

- **Retainer Services:** If payment is not received within 14 days of the due date, the Agency reserves the right to immediately suspend all services until full payment is made.
- **One-Time Projects:** Delays in payments may result in extended project timelines, for which the Agency is not liable.

5. Impact on Performance & Deliverables

- The Client acknowledges that payment delays may affect content scheduling, marketing performance, and project timelines. The Agency is not responsible for any resulting performance issues due to late payments.

3.1. Payment Adjustment & Refund Policy

- All payments made under this Agreement are **final**, except in cases where an adjustment or refund is **mutually agreed upon** by both the Client and the Agency.
- If a refund is requested and approved, the Agency will **calculate the value of all completed work, hours spent, and expenses incurred**, which will be deducted from the refundable amount. Any remaining balance, if applicable, will be refunded to the Client.
- If the Client chooses to discontinue services **before the agreed-upon term or project completion**, the Client remains responsible for all payments due up to that point, including any partially completed work.
- No adjustments, credits, or prorated refunds will be provided for **unused service periods, paused projects, or changes in Client needs**, unless otherwise agreed in writing.
- In cases of **non-payment or termination due to Client default**, the Agency retains the right to **withhold all deliverables, suspend services, and seek legal remedies** for outstanding balances.

4. CLIENT RESPONSIBILITIES

The Client agrees to:

XHQ, Office 303, O2 Tower, Business District
Jumeirah Village Circle, Dubai, UAE
+971 4 433 2156
info@mutant.ae

mutant

- Provide timely access to all necessary accounts, materials, branding guidelines, and content required for the project.
- Respond to approval and feedback requests within 48 hours to maintain agreed timelines.
- Comply with branding guidelines and provide high-quality assets when required.
- Acknowledge that any delays in providing access, approvals, or required materials may impact project timelines, and the Agency will not be held responsible for missed deadlines or reduced effectiveness due to such delays.
- If delays exceed seven (7) days, the Agency reserves the right to adjust deadlines, pause work, or apply a reactivation fee before resuming the project.
- Any changes or additional requests beyond the agreed Scope of Work must be documented and will be subject to additional costs and revised timelines.

5. AGENCY RESPONSIBILITIES & LIMITATIONS

The Agency agrees to:

1. Service Execution

- Deliver services as per the SOW provided the Client meets all requirements in a timely manner.

2. Quality & Compliance

- Ensure professional standards across design, development, hosting, and AI setup.

3. Reporting

- Provide updates based on SOW requirements and available data.

4. Confidentiality

- Maintain confidentiality of all Client data and proprietary information.

5. Limitations of Liability

- The Agency is not liable for delays caused by:
 - Client inaction
 - third-party services
 - hosting provider issues
 - API limitations
 - force majeure events
- For WhatsApp AI, results depend on platform policies and the Client's input.

6. No Performance Guarantees

- The Agency will optimize to the best of its expertise, but cannot guarantee:
 - business results
 - conversion rates
 - market performance
 - WhatsApp API policy changes

7. Work Suspension

If the Client delays required inputs for more than 7 days, the Agency may:

- Pause work
- Adjust deadlines
- Apply reactivation fees

mutant

5.1 ADDITIONAL LIABILITY STATEMENTS

- The Agency will make commercially reasonable efforts to meet timelines, but delays due to technical issues, testing, platform restrictions, or third-party dependencies are possible.
- The Agency is not liable for any loss of revenue or damages resulting from delays.
- Revised timelines will be considered valid extensions of the Agreement.
- Deadlines extend automatically if delays result from Client inaction.
- The Client waives compensation claims related to delays provided good-faith efforts continue.

6. CONCEPT RISK DISCLAIMER

- The Client acknowledges and agrees that the development of the proposed aggregator application is based on a conceptual and exploratory business idea.
- The Agency does not guarantee the commercial viability, user acquisition, market adoption, or financial success of the product.
- All strategic and business outcomes related to the project are undertaken at the Client's sole discretion and risk.
- The Agency's role is limited to design, development, and advisory services as outlined in the Scope of Work.
- The Client waives any right to pursue claims related to lack of business performance or market response.

6.1 DEVELOPMENT TIMELINES DISCLAIMER

- The Client understands that development involves iterative cycles, testing, and potential revisions due to unforeseen technical issues or scope adjustments. Timelines provided by the Agency are estimates and may be adjusted during development.
- The Agency shall not be held liable for any business or financial loss arising from launch delays. The Client waives any right to withhold payment or seek compensation due to shifts in development timelines, provided the Agency continues to make reasonable efforts to complete the work.

7. CONFIDENTIALITY & INTELLECTUAL PROPERTY

- All materials created by the Agency remain the property of the Agency until full payment is received, at which point ownership is transferred to the Client.
- All proprietary tools, templates, and frameworks used by the Agency remain the property of the Agency.
- The Client will own custom assets created for their project only upon full payment.
- The Client may not claim ownership of the source code unless a separate licensing agreement is signed.
- The Agency reserves the right to showcase the completed project in its portfolio unless otherwise agreed.

mutant

- The Agency has the right to use all work related to this project in its marketing materials, case studies, and portfolio, unless the Client explicitly requests otherwise in writing.

8. LIABILITY & INDEMNIFICATION

1. Limitation of Liability

- The Agency shall not be held liable for:
 - Indirect, incidental, or consequential damages, including loss of business, revenue, or profits.
 - Technical failures or policy changes by third-party platforms affecting performance.
 - Any work delays resulting from Client inaction, third-party dependencies, or force majeure events.

2. Indemnification

- The Client agrees to indemnify and hold the Agency harmless from any claims, damages, or legal disputes arising from:
 - Content or materials provided by the Client.
 - Misuse of marketing materials, designs, or intellectual property after handover.

9. DISPUTE RESOLUTION

- Any disputes shall first be resolved through good-faith negotiations.
- If unresolved, the matter will be subject to arbitration under the Dubai Courts.

10. GOVERNING LAW

This Agreement shall be governed by and interpreted in accordance with the laws of the United Arab Emirates.

SIGNATURES

Mutant Media FZC

Authorized Representative: _____

Date: _____

Mamalu Kitchen

Authorized Representative: _____

Date: _____